

Prayag Private I.T.I. v. State of U.P.

Allahabad High Court · Division Bench · 19 April 2021 · Writ-C No. 9750 of 2021 · **Writ disposed; petitioner left to Supply Code 2005 remedy.**

HEADNOTE

Where the petitioner admittedly has a remedy under the Uttar Pradesh Electricity Supply Code, 2005 (as amended on 10 August 2018) for a recovery certificate, connection of supply, installment facility and surcharge exemption, the High Court will not entertain the writ and will leave the petitioner to that Code remedy.

FACTUAL SUMMARY

Prayag Private I.T.I. filed a writ petition in the Allahabad High Court seeking to quash a recovery certificate dated 6 November 2019 for Rs. 3,80,000 plus recovery charges and interest, a mandamus to connect electricity supply to the institute at once, a direction that respondents receive the correct dues in easy installments with surcharge exemption, and a restraint against harassment. The Division Bench heard the matter by video conferencing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

alternate-remedy

HOLDING

A writ seeking quashing of a recovery certificate, mandamus for electricity connection, installment facility and surcharge exemption is not entertained where the petitioner has a remedy under the Uttar Pradesh Electricity Supply Code, 2005 (as amended on 10 August 2018); the petitioner is left to avail that Code remedy. ¶ 1

PRINCIPLE TAGS

alternate-remedy-under-supply-code

The Bench declined writ indulgence because the petitioner admittedly had a remedy under the U.P. Electricity Supply Code, 2005 as amended on 10 August 2018, and disposed of the petition by leaving the petitioner to that remedy without deciding the recovery, connection or installment prayers. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 06.11.2019 AND THE CLAIMED ARREARS, RECOVERY CHARGES AND INTEREST

Left to the petitioner's remedy under the Supply Code, 2005. ¶ 1

NOT DECIDED — ENTITLEMENT TO CONNECTION OF SUPPLY, INSTALLMENT FACILITY, SURCHARGE EXEMPTION, AND RESTRAINT AGAINST HARASSMENT

Not examined on merits. ¶ 1